CITY OF KADOMA

versus

ZWAMBILA AND PARTNERS T/A TATENDERWA ENTERPRISES

(PRIVATE) LIMITED

And

JACK PWANYA

HIGH COURT OF ZIMBABWE
MUZOFA AND BACHI-MZAWAZI JJ
Chinhoyi, 02 March /16 April 2026

G. Madzoka, for the appellant
I. Mugwagwa, for the respondent

BACHI MZAWAZI J:

Brief Overview

The appellant, City of Kadoma, a Local Council authority, is appealing against the entire judgement of the Magistrates court sitting at Kadoma, on 22 July 2025, granted in favor of the respondents. The respondents are a conglomerate of business people who leased a business premises from the National Railways of Zimbabwe. A strict term of the lease was that the leased piece of land, within the jurisdiction of the appellant was to be used solely as a flea market operating center. Temporary structures to that effect were erected pending the finalization of the requisite building formalities and permits from the appellant. It is on record that the respondents filed their building plans as a preliminary step to obtain permits, but the appellant has reportedly and admittedly misplaced them.

Even after several due diligent follow-ups, the appellant still could not locate the said plans. Instead, the appellant gave the respondents notice to demolish their structures, citing that they were not up to standard. Further, they expressed that some illegal structures, not matching the designation of flea markets, but liquor outlets and restaurants, amongst others, outside the scope of the respondent's lease agreement had mushroomed.

In response to the notice, apart from drawing the appellant's attention to its inaction and delay in processing and approving their respective plans yet they were paying levies, the respondents

proactively, sought judicial intervention**.** They obtained a prohibitory order barring the appellant from demolishing their properties from the Magistrates Court under GK107/24.

It is apparent and as explicitly detailed in a well penned judgment of the trial court, that appellant did not contest the said court process nor appeal against the court order interdicting them from demolishing the said structures. Nonetheless, they mobilized their demolition team and proceeded to the site. The appellant's officials were once again met with resistance by the respondents leaning on the protection purportedly accorded by the extant court order. Nevertheless, the appellant razed beyond redemption all the structures within that compound regardless.

In turn, the respondents issued summons for damages to the tune of USD50.000 from the appellant, arising from what they termed illegal demolitions. Evidential support of the quantum of damages was placed before the trial court.

The Magistrate after analyzing the facts and evidence, ruled in favor of the respondents, leaning heavily on the issue of the defilement or disobedience of the extant court order by the appellant. It is this ruling by the first court of instance, that is subject to this appeal.

Grounds of Appeal

The following are the grounds of appeal:

1. The court *a quo* erred at law by failing to consider and address all the submissions made by the appellant in toto.
2. The Court *a quo* erred at law in failing to appreciate that the extant court order given under case number CGK107/24 was not specific as it was not clear on the area which was affected by the order. The order was too general.
3. The Court *a quo* erred at law when it considered the respondents mere allegations that they were given permission by the appellant to proceed constructions without approved site plans without evidence being adduced to prove that fact.
4. The court *a quo* erred at law in failing to appreciate that the respondents are not entitled to damages as they made illegal constructions without following the requisite procedures for building plans with City of Kadoma hence approaching the court with dirty hands.
5. The court *a quo* erred at law by failing to accept the responsibility of the appellant to act in the public interests as directed for in the Health Act [Chapter 15:17].

6. The court erred at law by failing to accept the responsibility of the appellant of development control as enshrined in the Regional Town and Country Planning Act [Chapter 29:12].

Appellant's submissions

In its submissions, on appeal *Mr. Madzoka* for the appellant summarized that, the trial court erred in failing to address all the issues that had been raised. Relying on the cases of *Gwaradzimba v C J Petron and Sons, 12/16, and University of Zimbabwe v Vengai Mugabe and Another*, CCZ 17/25, amongst others, he argued that such failure renders the Magistrate's decision invalid.

It is their argument that the court ignored the fact that appellant was empowered by its governing enactment to demolish illegal structures through enforcement orders. The respondent's structures were illegal as they did not comply with the terms of their lease and standard building requirements for such structures. From that perspective, they submit that the demolition was a lawful act not liable to damages or compensation. As such, courts are said not to interdict lawful processes. Therefore, they are not liable to pay any damages arising from a statutorily sanctioned process.

Respondent's Case

In opposition, *Mr Mugwagwa,* for the respondents maintained that, their properties at the time of demolition regardless of the status of being legal or not, enjoyed the protection of the law. The extant court order interdicting the appellant from destroying their properties is law and ought to have been respected. In that regard, all actions contrary to the law must be accordingly penalized. On that basis, they contend that the trial court did not err by awarding them the proved damages.

Issues

The sole issue that arises is whether or not the trial court erred by ruling in favor of the respondents?

Analysis

It is true that the appellants are entitled to demolish structures that do not comply with the standard procedures outlined in their by- laws and the governing statutes. However, they do so

within the precincts of the law. It is also a recognized fact, that in terms of the Regional Town and Country Planning Act [Chapter 29:12], a stipulated notice period is given before the demolitions are carried out.

Clear from the record, the respondents, had no building plans that facilitated the issuance of permits. The appellant contributed to the non-compliance through their careless record keeping. As an administrative authority they ought to have addressed the issue of the missing building plans when they continued collecting revenue from the condemned structures.

It is not denied that they were collecting levies from the so -called illegal structures and businesses. Local councils act through their representatives and employees. It is outright wrong and an infringement of people's rights for these persons to benefit from what they term an illegality and then proceed to demolish the same structures they are levying. There are specific provisions that allow for the regularization of any buildings that do not comply with set regulations within the Regional Town and Country Planning Act [Chapter 29:12] and the Urban Councils Act [Chapter 29:15].

The appellant had an opportunity to defend the above stance when they were summoned to court in response to the interdict barring them from carrying out what in their view was a lawful operation. They did not challenge both the interim and the final confirmation order. They denied themselves the right to impugn the illegality of the respondents' structures and enterprises. Having allowed that crucial step to slip in between their fingers, they remained faced with an extant court order. A court order which stopped the demolitions. An extant court order which they violated.

The law is very clear and cannot be overstated. Based on the rule of law, a court order is valid and is of mandatory compliance. No matter how misplaced it may seem to be, until it is appealed against by a court of superior jurisdiction it is a law. No person or legal entity is above the law, in the strict sense. This is the position of the law, well renditioned in a plethora of court decisions. Of guidance is the case of *Mangena and Another* v *Wilsgrove Farming Enterprises Pvt Ltd* SC 05/24.

In the case of *Chiwenga* v *Chiwenga* SC 2/14, as cited in the case of *Magauzi & Anor* v *Jekera* SC 54/22, it was stated that:

"The law is clear that an extant order of this Court must be obeyed or given effect to unless it has been varied or set aside by this court and not even by consent can parties vary or depart therefrom. See also *CFU* v *Mhuriro & Ors* 2000 (2) ZRL 405 (S)."

This principle was restated by the Supreme Court in *Econet Wireless (Pvt) Ltd* v *Minister of the Public Service, Labour and Social Welfare & Ors* SC 31/16 at p 6, where the court aptly remarked that:

> "The doctrine of obedience of the law until its lawful invalidation was graphically put across by Lord Radcliffe in *Smith v East Elloe Rural District Council* [1956] AC 736 at 769 when he observed that:
> "An order, even if not made in good faith, is still an act capable of legal consequences. It bears no brand of illegality on its forehead. Unless the necessary procedures are taken at law to establish the cause of invalidity and to get it quashed or otherwise upset, it will remain as effective for its ostensible purpose as the most impeccable of orders. If it were not so, and every litigant challenging the validity of any law was excused from obeying the law pending determination of its validity, there would be absolute chaos and confusion, rendering the application of the rule of law virtually impossible. This is because anyone could challenge the validity of any law just to throw spanners into the works to defeat or evade compliance with the law."

It was further augmented in *Mauritius & Anor* v *Versapark Holdings (Private) Limited & Anor* SC 2/2022 when the Court said:

> "It is trite that once a court has made an order it binds all and sundry concerned. Everyone bound by the court order has a duty to obey the order as it is until it has been lawfully altered or discharged by a court of competent jurisdiction or statute. In *Hadkinson v Hadkinson* ROMER LJ recited the duty to obey court orders with remarkable clarity when he said:
> 'It is the plain and unqualified obligation of every person against or in respect of whom an order is made by a court of competent jurisdiction to obey it unless and until that order is discharged. The uncompromising nature of the obligation is shown by the fact that it even extends to where the person affected believes it to be irregular or even void.'
> (See also *Chiangwa & Ors* v *Apostolic Faith Mission in Zimbabwe & Ors* SC 67/21).

Disposition

In our considered view, the first hurdle the appellant faced in the court *a quo* was its non-compliance of an extant court order prohibiting them from carrying out demolitions. They had not purged their default when they appeared to contest the damages claim. The trial court reasoned, which we do not fault, that actions taken against an extant court order are illegal. Therefore, the demolitions were illegal attracting the attendant damages, full stop.

Of note, the trial court did not pursue the contempt of court route, otherwise it would not have given the appellant audience, or the right to argue and be heard. The court went beyond and attached liability on the consequences of the non-compliance of the extant court order. The demolitions had been stopped by the order of a competent court thereby illegitimizing any demolition actions. Hence, an award of damages was inevitable.

There was no need for the court to go any further and analyze the merits on the settlement structures and or the other ancillary issues as argued by *Mr Madzoka*. Unlike in the disciplines of science and mathematics, in the physical or factual realm, two wrongs cannot be equal to a right. The so- called remnant issues were for the court that had determined and issued the extant order without an opposition being mounted by the appellant. There is no way the trial court would have bypassed the issue of the extant order and its consequences linked to demolitions and the subsequent claim for damages.

Indeed, the case authorities cited by the appellant respectfully state that a court is enjoined to canvass all issues brought before it. However, there are ample authorities that also state that if a single issue disposes of the dispute, then it is not meritorious to then address other issues just for the sake of doing so, when the dispute has been resolved by the resolution of that single issue. For the record, a thorough perusal of the record did not disclose eleven issues purportedly placed before and ignored by the trial court, as orally submitted by Mr *Madzoka* on appeal. This was a misrepresentation.

We therefore find that the court did not err, even on the issue of the liability for the damages caused. In any event, as a word of caution, this award of damages for illegal demolitions should stand as a stern warning to local councils who wait until structures are complete and then move in to demolish without considering the expenses incurred and attendant mental turmoil of, in most cases innocent and duped citizens. Moreover, when all the stages of the constructions would have taken place under their constant watch. In most cases through their sanctioned land barons and cartels.

Interestingly in *casu*, no challenge was made as to the quantum of damages and the evidence in support thereof. There is no justification for costs as pleaded.

Accordingly, the appeal is without merit. It fails. It is dismissed with costs.

Bachi Mzawazi J

Muzofa J. Agrees

Mangwana and Partners appellant's legal practitioners
Mugwagwa and Partners respondent's legal practitioners